

COMMISSION IMPLEMENTING DECISION

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COMMISSION IMPLEMENTING DECISION

of 17 December 2013

confirming or amending the average specific emissions of CO₂ and specific emissions targets for manufacturers of new light commercial vehicles for the calendar year 2012 pursuant to Regulation (EU) No 510/2011 of the European Parliament and of the Council

(notified under document C(2013) 9184)

(Only the Dutch, English, French, German, Italian, Polish, Portuguese, Romanian, Spanish, and Swedish texts are authentic)

(2013/807/EU)

THE EUROPEAN COMMISSION,

Having regard to the Treaty on the Functioning of the European Union,

Having regard to Regulation (EU) No 510/2011 of the European Parliament and of the Council of 11 May 2011 setting emission performance standards for new light commercial vehicles as part of the Union's integrated approach to reduce CO₂ emissions from light-duty vehicles (1), and in particular Article 8(6) and Article 10(1) thereof,

Whereas:

(1)

The Commission is required, pursuant to Article 8(6) of Regulation (EU) No 510/2011, to confirm or amend each year the average specific emissions of CO₂ and the specific emissions target for each manufacturer of light commercial vehicles in the Union. On that basis, the Commission is to determine whether manufacturers and pools of manufacturers formed in accordance with Article 7(1) of that Regulation have complied with their specific emissions targets in accordance with Article 4 of that Regulation.

(2)

For the calendar years 2012 and 2013, the specific emissions targets are not binding and the Commission should therefore calculate indicative targets. As those indicative targets will serve as indicators to manufacturers of the effort required to reach the mandatory target in 2014, it is appropriate to determine the average specific emissions of CO₂ of manufacturers for 2012 and 2013 in accordance with the requirements set out in the third paragraph of Article 4 of Regulation (EU) No 510/2011 and take into account 70 % of the manufacturer's new light commercial vehicles registered in that year.

(3)

The detailed data to be used for the calculation of the average specific emissions of CO₂ and the specific emissions targets are set out in point 1 of Part A of Annex II to Regulation (EU) No 510/2011 and are based on Member States' registrations of new light commercial vehicles.

(4)

Where light commercial vehicles are type-approved in a multi-stage process, point 7 of Part B of Annex II to Regulation (EU) No 510/2011 requires that the manufacturer of the base vehicle take responsibility for the CO₂ emissions of the completed vehicle. Pending the applicability of the procedure for determining CO₂ emissions from this category of vehicles as provided for in Section 5 of Annex XII to Commission Regulation (EC) No 692/2008 (2), the Commission should calculate the specific emissions target for manufacturers of base vehicles using the mass in running order of the completed vehicle as defined in Article 3(1)(g) of Regulation (EU) No 510/2011 and should use the specific emissions of CO₂ of the base vehicle in accordance with the second paragraph of Article 4 of that Regulation.

(5)

The complete datasets for all Member States were made available to the Commission by the end of March 2013. Where, as a result of the verification of the data by the Commission, it was evident that certain data were missing or manifestly incorrect, the Commission contacted the Member States concerned and, subject to the agreement of those Member States, adjusted or completed the data accordingly. Where no agreement could be reached with a Member State, the provisional data of that Member State were not adjusted.

(6)

It should be noted that several Member States have not been able to distinguish between complete and completed light commercial vehicles in their current monitoring systems. As a consequence, the 2012 data for light commercial vehicles should be considered incomplete with regard to the monitoring of vehicles type-approved in a multi-stage process. In order to ensure a full and accurate monitoring of the CO₂ emissions and the technical data relating in particular to multi-stage vehicles, it is necessary to adjust the monitoring systems both at Union and Member State level. Therefore, the final values as confirmed in this Decision should not be considered fully representative of the CO₂ emissions performance of the new vehicle fleet in 2012.

(7)

On 18 June 2013, the Commission published the provisional data on light commercial vehicles and notified 60 manufacturers of the provisional calculations of their average specific emissions of CO₂ in 2012 and their specific emissions targets in accordance with Article 8(4) of Regulation (EU) No 510/2011. Manufacturers were asked to verify the data and to notify the Commission of any errors within three months of receipt of the notification in accordance with the Article 8(5) of that Regulation. Four manufacturers notified the Commission that they accepted the preliminary data without corrections whilst 24 manufacturers submitted notifications of errors.

(8)

For the 36 manufacturers that did not notify any errors in the datasets, the provisional data and provisional calculations of the average specific emissions of CO₂ and the specific emissions targets should be confirmed without adjustments.

(9)

The Commission has verified the corrections notified by the manufacturers and the respective justifications and the datasets have been adjusted as appropriate.

(10)

In the case of records with missing or incorrect identification parameters, such as type, variant, version code or type-approval number, the fact that manufacturers cannot verify or correct those records should be taken into account. As a consequence, it is appropriate to apply an error margin to the CO₂ emissions and mass values in those records.

(11)

The error margin should be calculated as the difference between the distances to the specific emissions target expressed as the specific emissions targets subtracted from the average emissions calculated including and excluding those registrations that cannot be verified by the manufacturers. Regardless of whether that difference is positive or negative, the error margin should always improve the distance to the target of the manufacturer.

(12)

The average specific emissions of CO₂ from new light commercial vehicles registered in 2012, the specific emissions targets and the difference between those two values should be confirmed or amended accordingly,

HAS ADOPTED THIS DECISION:

Article 1

The values relating to the performance of manufacturers, as confirmed or amended for each manufacturer of light commercial vehicles and for each pool of manufacturers of light commercial vehicles in respect of the 2012 calendar year in accordance with Article 8(6) of Regulation (EU) No 510/2011, are specified in the Annex to this Decision.

The values referred to in points (a) to (e) of Article 10(1) of Regulation (EU) No 510/2011 for each manufacturer of light commercial vehicles and for each pool of manufacturers of light commercial vehicles in respect of the 2012 calendar year are also specified in the Annex to this Decision.

Article 2

This Decision is addressed to the following individual manufacturers:

1.

AUDI AG

Berliner Ring 2

38436 Wolfsburg

Germany

2.

AUTOMOBILES CITROEN

6 rue Fructidor

75017 Paris

France

3.

AUTOMOBILES DANGEL

5 Rue Du Canal

68780 Sentheim

France

4.

AUTOMOBILES PEUGEOT

75 avenue de la Grande Armée

75016 Paris

France

5.

AZURE DYNAMICS

Unit 10 The IO Centre,
Whittle Way, Arlington Business Park
Gunnels Wood Road
Stevenage SG1 2BD
United Kingdom

6.

AVTOVAZ

Represented in the EU by:

LADA France SAS 13,
Route Nationale 10,
78310 Coignieres,
France

7.

BLU CAR S.R.L

Via Adua, 58 D/E
25034 Orzinuovi (BS)
Italia

8.

BAYERISCHE MOTOREN WERKE AG

Petuelring 130
80788 München,
Germany

9.

BMW M GMBH

Petuelring 130
80788 München
Germany

10.

CHRYSLER GROUP LLC

Bundesstraße 83
8071 Dörfla bei Graz
Austria

11.

AUTOMOBILE DACIA SA

Uzinei Street 1 - Mioveni
115400 Arges
Roumanie

12.

DAIHATSU MOTOR CO LTD

1-1, Daihatsu-Cho

Ikeda City,
Osaka 563-865
Japan

13.

DAIMLER AG
Mercedesstr. 137/1 70327 Zimmer 229
Stuttgart, HPC F403
Germany

14.

DONGFENG MOTOR CORPORATION
Giotti Victoria SRL Pissana Road, 11/a,
50021 Barberino, Val d'Elsa (Florence)
Italy

15.

DR MOTOR COMPANY SRL
S S 85, Venafrana km 37.500
86070 Macchia d'Isernia,
Italy

16.

ERKE EQUIPAMENTO PARA VEHICULOS S.A.
Ibaiondo Poligonoa, 3 (Orbegozo)
Hernani (20120), Gipuzkoa,
Spain

17.

FIAT GROUP AUTOMOBILES SPA
C.so Settembrini 40 Gate 8 Building 5 Room A8N
10135 Torino
Italy

18.

FORD MOTOR COMPANY OF AUSTRALIA LIMITED
Neihl Plant, building Imbert
479 Henry-Ford-Straße 1
50735 Köln
Germany

19.

FORD MOTOR COMPANY
Neihl Plant, building Imbert
479 Henry-Ford-Straße 1
50735 Köln
Germany

20.

FORD WERKE GMBH

Neihl Plant, building Imbert

479 Henry-Ford-Straße 1

50735 Köln

Germany

21.

FUJI HEAVY INDUSTRIES LTD

Leuvensesteenweg 555 B/8

1930 Zaventem

Belgium

22.

MITSUBISHI FUSO TRUCK & BUS CORPORATION

Represented in the EU by:

Daimler AG

Mercedesstr. 137/1 70327 Zimmer 229

Stuttgart, HPC F403

Germany

23.

GENERAL MOTORS CORPORATION

Represented in the EU by:

Adam Opel AG

Bahnhofplatz 1 IPC 39-12

65423 Rüsselsheim

Germany

24.

GM KOREA COMPANY

Represented in the EU by:

Adam Opel AG

Bahnhofplatz 1 IPC 39-12

65423 Rüsselsheim

Germany

25.

ZHEJIANG GONOW AUTO CO. Ltd

Represented in the EU by:

Gonow Europe SRL

Direzione Generale Via Aurelia, 1250

00166 Roma

Italy

26.

GREAT WALL MOTOR COMPANY LIMITED

Represented in the EU by:

International Motors Limited

I.M. House South Drive

Coleshill B46 1DF

United Kingdom

27.

HEBEI ZHONGXING AUTOMOBILE CO., Ltd

Represented in the EU by:

Ursus SA Lublin

ul. Frezerów 7,

20-952 Lublin,

Poland

28.

HYUNDAI MOTOR COMPANY

Represented in the EU by:

Hyundai Motor Europe GmbH

Kaiserleipromenade 5

63067 Offenbach

Germany

29.

ISUZU MOTORS LIMITED

Represented in the EU by:

Isuzu Motors Europe NV

Bist 12

2630 Aartselaar

Belgium

30.

IVECO SPA

Via Puglia 35

10156 Torino

Italia

31.

KIA MOTORS CORPORATION

Represented in the EU by:

Kia Motors Europe GmbH

Theodor-Heuss-Allee 11

60486 Frankfurt/M

Germany

32.

JAGUAR LAND ROVER LIMITED

w/10/5 Abbey Road

Whitley Coventry CV3 4LF

United Kingdom

33.

MAGYAR SUZUKI CORPORATION LTD

Legal Department Suzuki

Allee 7

64625 Bensheim

Germany

34.

MAHINDRA & MAHINDRA LTD

Represented in the EU by:

Mahindra Europe SRL

Via Cancelliera 35

00040 Ariccia (Roma)

Italy

35.

MAZDA MOTOR CORPORATION

Represented in the EU by:

Mazda Motor Europe GmbH

European R & D Centre

Hiroshimastr. 1

61440 Oberursel/Ts

Germany

36.

MIA ELECTRIC SAS

45, rue des Pierrières

BP 60324

79143 Cerizay Cedex

France

37.

MICRO-VETT SPA

Via Gambellara 34

40026 Imola (BO)

Italy

38.

MITSUBISHI MOTORS CORPORATION MMC

Represented in the EU by:

Mitsubishi Motors Europe BV MME

Op de Baan 8
6121 SG Born
The Netherlands

39.

mitsubishi motors europe bv mme

Represented in the EU by:

Mitsubishi Motors Europe BV MME

Op de Baan 8

6121 SG Born

The Netherlands

40.

mitsubishi motors thailand co ltd mmth

Represented in the EU by:

Mitsubishi Motors Europe BV MME

Op de Baan 8

6121 SG Born

The Netherlands

41.

Multicar GmbH (Multicar Zweigwerk der Hako-Werke GmbH)

Hako GmbH

Hamburger Str. 209 - 239

23843 Bad Oldesloe

Germany

42.

NISSAN INTERNATIONAL SA

Cranfield Technology Park

Moulsoe Road Cranfield

Bedfordshire MK43 0BD

United Kingdom

43.

OMCI SRL

Via Franchi Maggi 119

20089 Milan

Italy

44.

ADAM OPEL AG

Adam Opel AG

Bahnhofplatz 1IPC 39-12

65423 Rüsselsheim

Germany

45.

PIAGGIO & C SPA

Viale Rinaldo Piaggio, 25

56025 Pontedera (PI)

Italy

46.

DR ING h.c.F. PORSCHE AG

Porscheplatz 1

70435 Stuttgart

Germany

47.

RENAULT S.A.S

Guyancourt

1 avenue du Golf

78288 Guyancourt Cedex

France

48.

SANTANA MOTOR SA

Avda. Primero de Mayo s/n

23700 Linares (JEAN)

Spain

49.

SEAT SA

Berliner Ring 2

38436 Wolfsburg

Germany

50.

SKODA AUTO AS

Berliner Ring 2

38436 Wolfsburg

Germany

51.

SOLOMON COMMERCIALS Ltd

Knowsley Road Industrial Estate

Haslingden, Rossendale

Lancashire BB4 4RX

United Kingdom

52.

SSANGYONG MOTOR COMPANY

Represented in the EU by:

Ssangyong European Parts Center BV
IABC 5253/5254
4814RD Breda
The Netherlands

53.

SUZUKI MOTOR CORPORATION
Represented in the EU by:
Suzuki International Europe GmbH
Legal Department
Suzuki Allee 7
64625 Bensheim
Germany

54.

TATA MOTORS LIMITED
Represented in the EU by:
Tata Motors European Technical Centre PLC
18 Grosvenor Place
London SW1X 7HS
United Kingdom

55.

TOYOTA MOTOR EUROPE NV SA
Avenue du Bourget 60
1140 Brussels
Belgium

56.

TOYOTA CAETANO PORTUGAL, S.A.
Avenida Vasco de Gama 1410
4431-956 Vila Nova de Gaia
Portugal

57.

TOYOTA SOUTH AFRICA
Avenue du Bourget 60
1140 Brussels
Belgium

58.

PJSC UAZ
Moskovskoye shosse, 92,
Ulyanovsk 432034,
Russian Federation

59.

VOLKSWAGEN AG

Berliner Ring 2

38436 Wolfsburg

Germany

60.

VOLVO CAR CORPORATION

VAK building, Assar Gabrielssons väg

Göteborg

SE-405 31 Goteborg

Sweden

It shall be published in the Official Journal of the European Union.

Done at Brussels, 17 December 2013.